



IN THE HIGH COURT OF JUDICATURE AT BOMBAY
BENCH AT AURANGABAD

WRIT PETITION NO.5234 OF 2023

1. Swami Ramanand Teerth Marathwada
University, Nanded at Vishnupuri,
Taluka and District Nanded,
Through its Registrar.

... **Petitioner**
(Orig. Respondent)

Versus

2. Shri Ranoji S/o. Yadavrao Hambarde,
Age: 42 years, Occu: Service,
2. Shri. Vishnu S/o Thakajirao Dhanawade,
Age: 48 years, Occu. Service,
3. Shri Sainath S/o Trimbakrao Mamidwar,
Age : 46 years, Occu. : Service,
4. Shri Pradip S/o Dadaro Bhosale,
Age : 49 years, Occu. : Service,
5. Mr. Shaikh Hajibegum Abdul Aziz,
Age : 47 years, Occu. : Service,
6. Shri Sushil S/o Subhashrao Kharwadkar,
Age : 47 years, Occu. : Service,
7. Shri Subhash S/o Govindrao Thete,
Age : 48 years, Occu. : Service,
8. Shri Suresh S/o Pandurangrao More,
Age : 47 years, Occu. : Service,
9. Shri Ananda S/o. Gangaram Hambarde,
Age : 49 years, Occu. Service

All R/at Swami Ramanand Teerth Marathwada
University, Nanded, at Vishnupuri,
Taluka and District Nanded.

(Orig. Complainants)

10. Member,
Industrial Court Maharashtra
Bench at Jalna, Jalna Dist. Jalna

...Respondents

.....
WITH

WRIT PETITION NO.10502 OF 2023

1. Ranoji S/o Yadavrao Hambarde,
Age: 48 years, Occu. Service.
2. Vishnu Thakajirao Dhanwade,
Age: 51 years, Occu. Service.
3. Sainath S/o Trimbakrao Mamidwar,
Age: 50 years, Occu. Service.
4. Pradip S/o Dadarao Bhosale,
Age: 52 years, Occu. Service.
5. Shaikh Hajibegum Abdul Aziz,
Age: 50 years, Occu. Service.
6. Sushil S/o Subhashrao Kharwadkar,
Age: 50 years, Occu. Service.
7. Subhash Govindrao Thete
Age: 51 years, Occu. Service.
8. Suresh Pandurang More,
Age: 51 years, Occu. Service.
9. Ananda S/o Gangaram Hambarde,
Age: 50 years, Occu. Service.

All Resident of Swami Ramanand
Teerth Marathwada University,
At Vishnupuri, Taluka and Dist. Nanded.

...Petitioners
(Orig. Complainants)

Versus

1. Swami Ramanand Teerth Marathwada University,
Nanded at Vishnupuri,
Taluka and District Nanded, Through its Registrar.
2. Member,
Industrial Court Maharashtra,
Bench at Jalna, District Jalna.

...Respondents
(No.1 Original Respondent)

....
WITH

WRIT PETITION NO.10511 OF 2023

1. Dasrao S/o Madhavrao Hambarde,
Age: 56 years, Occu. Service.
2. Govind S/o Dattaram Hambarde,
Age: 46 years, Occu. Service.
3. Kishor S/o Govindrao Hambarde,
Age: 44 years, Occu. Service.

All Resident of Swami Ramanand
Teerth Marathwada University,
At Vishnupuri, Taluka and Dist. Nanded.

...Petitioners
(Orig. Complainants)

Versus

1. Swami Ramanand Teerth Marathwada University,
Nanded at Vishnupuri,
Taluka and District Nanded, Through its Registrar.
2. Member,
Industrial Court Maharashtra,
Bench at Jalna, District Jalna.

...Respondents
(Original Respondents)

WITH
WRIT PETITION NO.5233 OF 2023

1. Swami Ramanand Teerth Marathwada University, Nanded at Vishnupuri, Taluka and District Nanded, Through its Registrar.

... Petitioner
(Orig. Respondent)

Versus

1. Dasrao S/o Madhavrao Hambarde, Age: 56 years, Occu. Service.
2. Govind S/o Dattaram Hambarde, Age: 46 years, Occu. Service.
3. Kishor S/o Govindrao Hambarde, Age: 44 years, Occu. Service.

All Resident of Swami Ramanand Teerth Marathwada University, At Vishnupuri, Taluka and Dist. Nanded. (Orig. Complainants)

4. Member, Industrial Court Maharashtra, Bench at Jalna, District Jalna.

...Respondents

...

Appearance :

In Writ Petition Nos.10511/2023 and 10502/2023

Mr. P. R. Katneshwarkar (Senior Counsel) i/b Mr. Rahil R. Kazi, Advocate for the Petitioner/s
Mr. U. S. Malte, Advocate for Respondent No.1
Mr. R. B. Dhaware, AGP for Respondent No.2

In Writ Petition Nos.5233/2023 and 5234/2023

Mr. U. S. Malte, Advocate for the Petitioner/s
Mr. P. R. Katneshwarkar (Senior Counsel) i/b Mr. Rahil R. Kazi, Advocate for the Petitioner/s

...

CORAM : SIDDHESHWAR S. THOMBRE, J.

DECIDED ON : 23.02.2026

JUDGMENT :

1. **RULE.** Rule made returnable forthwith. Heard finally with the consent of the parties at the stage of admission.

2. The Petitioners in Writ Petition Nos.10511/2023 and 10502/2023 are collectively referred as employees hereinafter for the sake of brevity. The Petitioner in Writ Petition Nos.5233/2023 and 5234/2023 is referred as University hereinafter for the sake of brevity.

3. In Writ Petition No. 5233/2023, the University and in Writ Petition No.10511/2023, the employees are assailing the order dated 21.12.2022 passed by the learned Member Industrial Court, Jalna in complaint (ULP) No.51/2010, whereby the complaint filed by the employees came to be allowed partly, thereby directing Employee - Dasrao Madhavrao Hambarde to be made permanent from the date of presentation of complaint on the post he was working as per his qualification, whereas other employees were granted payment of regular wages along with all monetary and other consequential benefits. The employees in Writ Petition

No.10511/2023 are assailing the said order to the extent of not granting them permanency from the date of completion of 240 days of service. The University has filed Writ Petition No. 5233/2023 seeking setting aside the said order.

In Writ Petition No. 5234/2023, the University and in Writ Petition No.10502/2023 the employees are assailing the order dated 21.12.2022 passed by the learned Member Industrial Court, Jalna in Complaint (ULP) No.46/2010, whereby the complaint filed by the employees came to be allowed partly, thereby directing employees to be made permanent from the date of presentation of complaint on the post they were working as per their qualification, whereas all the employees were granted payment of regular wages along with all monetary and other consequential benefits. The employees in Writ Petition No.10511/2023 are assailing the said order to the extent of not granting them permanency from the date of completion of 240 days of service. The University has filed Writ Petition No. 5234/2023 seeking setting aside the said order.

4. The brief facts of the case are as follows :

The employees were appointed temporarily and

periodically but in continuation with artificial breaks of few days. They were paid salaries through money transfer to their respective bank accounts. Their work was perennial in nature. The land of the employees was acquired for establishment of University and as per the existing policy, they were promised jobs in the University to one of the member of their families. University was established in the year 1994 and is autonomous and statutory body financed by the State of Maharashtra. The employees were performing work identical and equal in nature with the permanent employees without any difference in quantity and quality compared to their permanent counter parts. The employees had completed 240 days of continuous service, they were educationally qualified and were under the prescribed age limit for being entitled to the status of permanent employees.

5. On refusal by the University to grant them permanency along with all monetary and consequential benefits, they filed Complaint (ULP) Nos.46/2010 and 51/2010 (for short 'respective Complaints') before learned Industrial Court, Jalna which allowed the respective Complaints partly, thereby granting the reliefs mentioned herein-

above.

6. Mr. U. S. Malte, the learned Counsel for University submits that the University does not count as “Industry” within the meaning of Section 2(j) of the Act as it is a statutory authority established under Section 3 of the Maharashtra Public University Act, 1994. The learned Industrial Court failed to consider the provision of Section 8(1)(a) of the Maharashtra Public University Act, 1994 which states that the University shall not create new posts of teachers, officers and other employees without prior approval of the State Government. Therefore it was not the fault of University that it could not create posts and give permanency to the employees. He submits that the order passed by this Court in Writ Petition No.8067/2006 cannot be termed as a precedent and its benefit cannot be extended to other employees as they do not stand on same footing, because the employees in question were not in the merit list prepared as per the Scheme. The letter dated 27.06.2003 issued by University to the Higher and Technical Education Department was merely a proposal for sanctioning of posts and it neither implies that the posts were vacant and available nor does it create any right in favour of employees. It is

incumbent upon the employees to prove before learned Industrial Court that the vacant and sanction posts were available at the time of appointments and their appointments were duly made as per the established procedure. The negative burden to prove this fact cannot be shifted upon the University. The University had no motive to deprive them of the right of permanency and it was not the fault of the University that posts were not sanctioned by the Government. If the employees wanted permanency they could have participated in the Scheme but they did not do so. Therefore he submits that the order passed by Industrial Court requires interference by this Court to get the same quashed and set aside.

7. In support of his submissions, he relies on the following judgments :

- (i) *Rashtrasant Tukdoji Maharaj Nagpur University and Anr. Vs. Hon'ble Member and Others, 2015 (5) BCR 508.*
- (ii) *Secretary, State of Karnataka & Ors. Vs. Umadevi and Others, (2006) 4 SCC 1.*
- (iii) *Indian Drugs and Pharmaceuticals Ltd. Vs. Workmen, Indian Drugs and Pharmaceuticals Ltd. (2007) 1 SCC 408.*
- (iv) *Hindustan Aeronautics Ltd. Vs. Dan Bahadur Singh and Ors., (2007) 6 SCC 207.*

- (v) *Lagwad Adhikari and Ors. Vs. Yasin Hamid Sayyad and Ors., 2008 (1) BCR 527.*
- (vi) *Official Liquidator Vs. Dayanand & Ors., (2008) 10 SCC 1.*
- (vii) *Maharashtra State Road Transport Corporation and Anr. Vs. Casteribe Rajya Parivahan Karmchari Sanghatana.*

8. He further submits that the employees, in the hope of being permanent, waited for years together and became age barred for obtaining employment elsewhere. In addition to this, they were given threats of loss of employment if they took steps for being permanent and were forced to work for lesser wages. Some of the other employees had filed Complaint (ULP) No.157/2003 praying permanency which was allowed and the same has been confirmed by this Court in Writ Petition No. 8067/2006 dated 12.01.2010. The present employees are similarly situated with those employees and are therefore entitled to permanency. There was not a single adverse report against any of the employees during the whole tenure of the service and the same has remained unblemished. The University had received sanction from the Government vide G.R. issued by Higher and Technical Education Department dated 23.07.2009 to finally absorb 400 employees in view of the order passed by this Court in Writ Petition No.8067/2006 dated

12.01.2010, according to which the University floated Scheme in which some of the employees participated. The University forwarded the request for granting permanency to employees vide letter dated 27.06.2003.

9. He further submits that the employees come under the category of “workmen” under Section 2(s) of the Industrial Disputes Act, 1947 (for short ‘the Act’) and the University comes under the category of “Industry”. He further submits that this Court in Writ Petition No.12342/2015, Writ Petition No.12343/2015, Writ Petition No.12344/2015, Writ Petition No.12345/2015 has held that State of Maharashtra need not be a party to the respective Complaints and the orders in those petitions has been confirmed by the Hon’ble Apex Court in SLP Nos. 36528/2016, 36530/2016, 36549/2016, 36525/2016. He submits that the University has itself issued Experience Certificate to Employee namely Dasrao Madhavrao Hambarde wherein it is stated that he was working on daily wages between the period from 03.06.1996 to 30.09.1998 and from 01.10.1998 continuously onward, which itself proves the case of the said Employee. He submits that the discriminatory

treatment given by the University is in violation of right to equality. The Industrial Court ought to have granted permanency along with consequential benefits from the date of their appointments or at least from the date of completion of 240 days of continuous service. Therefore, he submits that the employees are entitled to permanency from the date of completion of 240 days of continuous service.

10. Mr. P. R. Katneshwarkar, learned Senior Counsel instructed by Mr. Rahil R. Kazi, the Counsel for employees submit that the University comes in the category of “Industry” within the meaning of Section 2(j) and employees come under the category of “workmen” within the meaning of Section 2(s) of the Industrial Disputes Act, 1947 (for short “the Act”). The University receives funds from the State of Maharashtra and therefore it comes under the category of ‘State’ within the meaning of Article 12 of the Constitution of India. The employees performed work identical and equal compared to the permanent employees without there being any difference of quantity or quality. By implication, operation of law and principle of equality, the employees are entitled to

permanency. Mere introduction of artificial breaks in the employment do not abridge their right of permanency. It had never happened that University lacked work and work was always. The employees were working full time throughout the year since the date of their joining. As the respective lands of employees were acquired for establishment of University, they were asked to nominate a person from their respective families for obtaining employment with the University, accordingly some of the employees were appointed. The employees are educationally and academically qualified. They have completed requisite 240 days of continuous service in each year and have thereby attained status of permanency. It is settled position that University being State should be a model employer. Some of the junior employees were granted permanency to the exclusion of present employees by showing partiality and favoritism, though all of them were performing equal work.

11. Having gone through the impugned orders and rival submissions of both the parties, there is no dispute regarding the appointments of employees. As far as the issue of non-joinder of State Government is concerned, the same has already been

addressed by this Court by holding that the State Government is not a necessary party to the respective Complaints and the same has also been confirmed by the Hon'ble Apex Court. This Court holds that University is an Industry within the meaning of Section 2(j) of the Act. The record reveals that the employees in question were performing similar work in terms of quantity and quality compared to their counter-parts who were permanent employees. Record also reveals that they have completed 240 days of continuous service in preceding years, though artificial breaks were introduced inbetween. Their work was permanent and perennial in nature from the very beginning of their service. As per the policy of the University, the employees were promised jobs to only one member of their household when their lands were acquired for establishment of University. In fact the name of Dasrao Madhavrao Hambarde had reflected in the information letter received under Right to Information Act, 2005, which shows that he was one of the beneficiary of the said policy. The employees were sufficiently qualified for performing the prescribed work and therefore they were continued from time to time. The act of University of granting permanency to the junior employees to the exclusion of employees

in question shows discriminatory conduct of the University. The employees have worked years together for the University and at this stage not granting them of benefit of permanency would be unjustified. Merely because the State Government had been reluctant in creating and sanctioning posts cannot curtail the justifiable right of employees for permanency. The letter issued by University dated 27.06.2003 clearly shows the intent of University to grant permanency to the employees but only because the posts were not sanctioned by the Government, the said intent cannot be wasted. The Hon'ble Apex Court in the case of **Pandurang Sitaram Jadhav and others Vs. State of Maharashtra Through its Dairy Manager and another**, reported in [(2020) 17 SCC 393] has observed in paragraphs 12, 13 and 14 as under:

"12. In view of the aforesaid facts as also the legal pronouncements made subsequently, we have no doubt that these appellants before us would be entitled to the benefit of regularisation and mere delay in preferring the claim would not come in their way except that the benefit of regularisation would arise from the date the Complaints were filed.

13. The finding of an unfair labour practice by the Tribunal has in fact been confirmed by the learned Single Judge in the present case and the only two reasons for interference by the Division Bench relating to Umadevi (3) case have already been explained in the aforesaid subsequent judgments.

14. We thus, direct the respondents to regularise the

appellants accordingly and the necessary orders be issued within three months from the date of the order. The benefits which the appellants would be entitled to should also be remitted to the appellants within the same period from the date of the Complaints, though the earlier period would be counted for the purpose of calculation of benefits without the appellants being monetarily entitled for that period."

12. The Hon'ble Apex Court further in the case of **Shripal and another Vs. Nagar Nigam, Ghaziabad**, reported in (2025 SCC OnLine SC 221) has observed in paragraphs 16, 17 and 18 as under:

"16. The High Court did acknowledge the Employer's inability to justify these abrupt terminations. Consequently, it ordered re-engagement on daily wages with some measure of parity in minimum pay. Regrettably, this only perpetuated precariousness: the Appellant Workmen were left in a marginally improved yet still uncertain status. While the High Court recognized the importance of their work and hinted at eventual regularization, it failed to afford them continuity of service or meaningful back wages commensurate with the degree of statutory violation evident on record.

17. In light of these considerations, the Employer's discontinuation of the Appellant Workmen stands in violation of the most basic labour law principles. Once it is established that their services were terminated without adhering to Sections 6E and 6N of the U.P. Industrial Disputes Act, 1947, and that they were engaged in essential, perennial duties, these workers cannot be relegated to perpetual uncertainty. While concerns of municipal budget and compliance with recruitment rules merit consideration, such concerns do not absolve the Employer of statutory obligations or negate equitable entitlements. Indeed, bureaucratic limitations cannot trump the legitimate rights of workmen who have served continuously in de facto

regular roles for an extended period.

18. The impugned order of the High Court, to the extent they confine the Appellant Workmen to future daily-wage engagement without continuity or meaningful back wages, is hereby set aside with the following directions:

I. The discontinuation of the Appellant Workmen's services, effected without compliance with Section 6E and Section 6N of the U.P. Industrial Disputes Act, 1947, is declared illegal. All orders or communications terminating their services are quashed. In consequence, the Appellant Workmen shall be treated continuing in service from the date of their termination, for all purposes, including seniority and continuity in service.

II. The Respondent Employer shall reinstate the Appellant Workmen In their respective posts (or posts akin to the duties they previously performed) within four weeks from the date of this Judgment. Their entire period of absence (from the date of termination until actual reinstatement) shall be counted for continuity of service and all consequential benefits, such as seniority and eligibility for promotions, if any.

III. Considering the length of service, the Appellant Workmen shall be entitled to 50% of the back wages from the date of their discontinuation until their actual reinstatement. The Respondent Employer shall clear the aforesaid dues within three months from the date of their reinstatement.

IV. The Respondent Employer is directed to initiate a fair and transparent process for regularizing the Appellant Workmen within six months from the date of reinstatement, duly considering the fact that they have performed perennial municipal duties permanent posts. In assessing regularization, the Employer shall not impose educational or procedural criteria retroactively if such requirements were never applied to the Appellant Workmen similarly situated regular employees in the past. To the extent that sanctioned vacancies for such duties exist or are require the Respondent Employer shall expedite all necessary administrative processes to ensure these longtime employees are not indefinitely

retained on daily wages contrary to statutory equitable norms".

13. Further, the Hon'ble Apex Court in the matter of ***Dharam Singh and others Vs. State of U.P. and Another***, reported in (2025 ***SCC Online 1735***) observed in paragraph 17 to 20, as under:

"17. Before concluding, we think it necessary to recall that the State (here referring to both the Union and the State governments) is not a mere market participant but a constitutional employer. It cannot balance budgets on the backs of those who perform the most basic and recurring public functions. Where work recurs day after day and year after year, the establishment must reflect that reality in its sanctioned strength and engagement practices. The long-term extraction of regular labour under temporary labels corrodes confidence in public administration and offends the promise of equal protection. Financial stringency certainly has a place in public policy, but it is not a talisman that overrides fairness, reason and the duty to organise work on lawful lines.

18. Moreover, it must necessarily be noted that "ad-hocism" thrives where administration is opaque. The State Departments must establishment registers, muster rolls and outsourcing keep and produce accurate arrangements, and they must explain, with evidence, why they prefer precarious engagement over sanctioned posts where the work is perennial. If "constraint" is invoked, the record should show what alternatives were considered, why similarly placed workers were treated differently, and how the chosen course aligns with Articles 14, 16 and 21 of the Constitution of India. Sensitivity to the human is not consequences of prolonged insecurity sentimentality. It is a constitutional discipline that should inform every decision affecting those who keep public offices running.

19. Having regard to the long, undisputed service of the appellants, the admitted perennial nature of their duties, and the material Indicating vacancies and comparator regularisations, we issue the following

directions:

i. Regularization and creation of Supernumerary posts: All appellants shall stand regularized with effect from 24.04.2002, the date on which the High Court directed a fresh recommendation by the Commission and a fresh decision by the State on sanctioning posts for the appellants. For this purpose, the State and the successor establishment (U.P. Education Services Selection Commission) shall create the or supernumerary posts in corresponding cadres, Class-III (Driver or equivalent) and Class-IV (Peon/Attendant/Guard or equivalent) without any caveats preconditions. On regularization, each appellant shall be placed at not less than the minimum of the regular pay-scale for the post, with protection of last-drawn wages if higher and the appellants shall be entitled to the subsequent increments in the pay scale as per the pay grade. For seniority and promotion, service shall count from the date of regularization as given above.

ii. Financial consequences and arrears: Each appellant shall be paid as arrears the full difference between (a) the pay and admissible allowances at the minimum of the regular pay-level for the post from time to time, and (b) the amounts actually paid, for the period from 24.04.2002 until the date of regularization/retirement/death, as the case may be. Amounts already paid under previous interim directions shall be so adjusted. The net arrears shall be released within three months and if in default, the unpaid amount shall carry compound interest at 6% per annum from the date of default until payment.

iii. Retired appellants: Any appellant who has already retired shall be granted regularization with effect from 24.04.2002

until the date of superannuation for pay fixation, arrears under clause (ii), and recalculation of pension, gratuity and other terminal dues. The revised pension and terminal dues shall be paid within three months of this Judgment.

iv. **Deceased appellants:** In the case of Appellant No. 5 and any other appellant who has died during pendency, his/her legal representatives on record shall be paid the arrears under clause (ii) up to the date of death, together with all terminal/retiral dues recalculated consistently with clause (1), within three months of this Judgment.

v. **Compliance affidavit:** The Principal Secretary, Higher Education Department, Government of Uttar Pradesh, or the Secretary of the U.P. Education Services Selection Commission or the prevalent competent authority, shall file an affidavit of compliance before this Court within four months of this Judgment.

20. We have framed these directions comprehensively because, case after case, orders of this Court in such matters have been met with fresh technicalities, rolling "reconsiderations," and administrative drift which further prolongs the insecurity for those who have already laboured for years on daily wages. Therefore, we have learned that Justice in such cases cannot rest on simpliciter directions, but it demands imposition of clear duties, fixed timelines, and verifiable compliance. As a constitutional employer, the State is held to a higher standard and therefore it must organise its perennial workers on a sanctioned footing, create a budget for lawful engagement, and implement judicial directions in letter and spirit. Delay to follow these obligations is not mere negligence but rather it is a conscious method of denial that erodes livelihoods and dignity for these workers. The operative scheme we have set here comprising of creation of supernumerary posts, full regularization, subsequent financial benefits, and a sworn affidavit of compliance, is therefore a pathway designed to convert rights into outcomes and

to reaffirm that fairness in engagement and transparency in administration are not matters of grace, but obligations under Articles 14, 16 and 21 of the Constitution of India”.

14. The Hon'ble Apex Court in the matter of ***Jaggo vs. Union of India and Others***, reported in ***2024 SCC OnLine SC 3826***, has also observed in paragraphs 9, 20 and 26 as under:

“9. On the other hand, the following primary arguments have been advanced before us on behalf of the Respondents:

(i).....

(ii) Absence of Sanctioned Posts: They assert that the appellants were not appointed against any sanctioned posts. According to the respondents, without sanctioned vacancies, there can be no question of regularization or absorption into the permanent workforce.

(iii).....

(iv).....

(v).....

(vi).....

*20..... The said judgment sought to prevent backdoor entries and illegal appointments that circumvent constitutional requirements. However, where appointments were not illegal but possibly “irregular,” and where employees had served continuously against the backdrop of sanctioned functions for a considerable period, the need for a fair and humane resolution becomes paramount. Prolonged, continuous, and unblemished service performing tasks inherently required on a regular basis can, over the time, transform what was initially ad-hoc or temporary into a scenario demanding fair regularization. In a recent judgment of this Court in *Vinod Kumar v. Union of India*, (2024) 1 SCR 1230, it was held that*

procedural formalities cannot be used to deny regularization of service to an employee whose appointment was termed "temporary" but has performed the same duties as performed by the regular employee over a considerable period in the capacity of the regular employee. The relevant paras of this judgment have been reproduced below:

"6. The application of the judgment in Uma Devi (supra) by the High Court does not fit squarely with the facts at hand, given the specific circumstances under which the appellants were employed and have continued their service. The reliance on procedural formalities at the outset cannot be used to perpetually deny substantive rights that have accrued over a considerable period through continuous service. Their promotion was based on a specific notification for vacancies and a subsequent circular, followed by a selection process involving written tests and interviews, which distinguishes their case from the appointments through back door entry as discussed in the case of Uma Devi (supra).

7. The judgment in the case Uma Devi (supra) also distinguished between "irregular" and "illegal" appointments underscoring the importance of considering certain appointments even if were not made strictly in accordance with the prescribed Rules and Procedure, cannot be said to have been made illegally if they had followed the procedures of regular appointments such as conduct of written examinations or interviews as in the present case..."

26.It categorically held that employees in irregular appointments, who were engaged in duly sanctioned posts and had served continuously for more than ten years, should be considered for regularization as a one-time measure. However, the laudable intent of the judgment is being subverted when institutions rely on its dicta to indiscriminately reject the claims of employees, even in cases where their appointments are not illegal, but merely lack adherence to procedural formalities. Government departments often cite the

judgment in Uma Devi (supra) to argue that no vested right to regularization exists for temporary employees, overlooking the Judgment's explicit acknowledgment of cases where regularization is appropriate. This selective application distorts the judgment's spirit and purpose, effectively weaponizing it against employees who have rendered indispensable services over decades."

15. The Hon'ble Apex Court in the case of **Bhola Nath Vs. The State of Jharkhand & Ors.** reported in **2026 INSC 99** has held in Paragraph Nos. 13.10 and 14 as under :

"13.10. In the aforesaid backdrop, we are unable to persuade ourselves to accept the respondent-State's contention that the mere contractual nomenclature of the appellants' engagement denudes them of constitutional protection. The State, having availed of the appellants' services on sanctioned posts for over a decade pursuant to a due process of selection and having consistently acknowledged their satisfactory performance, cannot, in the absence of cogent reasons or a speaking decision, abruptly discontinue such engagement by taking refuge behind formal contractual clauses. Such action is manifestly arbitrary, inconsistent with the obligation of the State to act as a model employer, and fails to withstand scrutiny under Article 14 of the Constitution.

FINAL CONCLUSION:

14. In light of our discussion, in the foregoing paragraphs, we summarize our conclusions as follows:

I. The respondent-State was not justified in continuing the appellants on sanctioned vacant posts for over a decade under the nomenclature of contractual engagement and thereafter denying them consideration for regularization.

II. Abrupt discontinuance of such long-standing engagement solely on the basis of contractual nomenclature, without either recording cogent reasons or passing a speaking order, is manifestly arbitrary and violative of Article 14 of the Constitution.

III. Contractual stipulations purporting to bar claims for regularization cannot override constitutional guarantees. Acceptance of contractual terms does not amount to waiver of fundamental rights, and contractual stipulations cannot immunize arbitrary State action from constitutional scrutiny.

IV. The State, as a model employer, cannot rely on contractual labels or mechanical application of Umadevi (supra) to justify prolonged ad-hocism or to discard long-serving employees in a manner inconsistent with fairness, dignity and constitutional governance.

V. In view of the foregoing discussion, we direct the respondent-State to forthwith regularize the services of all the appellants against the sanctioned posts to which they were initially appointed. The appellants shall be entitled to all consequential service benefits accruing from the date of this judgment.”

16. In the above judgments, the Hon'ble Apex Court has considered the issue of regularization and held that if the daily wager employees have worked for years together and subsequently, not given benefit of permanency then it amounts to unfair labor practices. The employees have proved before the learned Industrial Court that they have worked continuously in service and therefore, the Industrial Court has rightly granted permanency in their favour from the date of filing of respective Complaints. As far as the prayer for granting permanency from the date of completion of 240 days of service is concerned, the same cannot be considered as the employees were appointed prior to year 2000 and respective

Complaints were filed in the year 2010. Therefore due to delay and latches the said benefit cannot be extended to the employees who were not vigilant about their rights.

17. The orders passed by the Industrial Court in respective Complaints are appropriate in view of the above mentioned judgments of the Hon'ble Apex Court and warrant no interference by this Court either in favour of University or employees.

18. Considering the law laid down by the Hon'ble Apex Court in the above cited cases, I am not inclined to entertain the present petition. Hence I proceed to pass following order :

ORDER

- (i) The Writ Petitions are dismissed.
- (ii) No order as to cost.

19. Rule is discharged.

20. After passing this order, Learned Counsel for University prays for stay to this order for period of 8 weeks. In fact, the present petition is pending since 2023 and no interim order was passed during its pendency, therefore I am not inclined to consider such prayer and the same is rejected.

(SIDDHESHWAR S. THOMBRE, J.)